

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Haeley Galeote	Team: Squad #14	CCRB Case #: 202101803	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 03/20/2021 10:38 AM	Location of Incident: Owens Funeral Home	Precinct: 28	18 Mo. SOL 9/20/2022	EO SOL 9/20/2022	
Date/Time CV Reported Sat, 03/20/2021 5:13 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Sat, 03/20/2021 5:13 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Nicole Roark	18530	964243	028 PCT
2. DTS Kendrick Victoria	02110	943927	028 PCT
3. SGT Melike Turk	01812	955604	028 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Katlyn Kang	16212	960742	028 PCT

Officer(s)	Allegation	Investigator Recommendation
A.SGT Melike Turk	Abuse: Sergeant Melike Turk forcibly removed § 87(2)(b) to the hospital.	
B.POF Nicole Roark	Abuse: Police Officer Nicole Roark searched § 87(2)(b)	
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		
§ 87(4-b) § 87(2)(g)		

Case Summary

On March 20, 2021, § 87(2)(b) filed this complaint via the CCRB's online website.

On March 20, 2021, at approximately 10:30 a.m., § 87(2)(b) went to Owens Funeral Home at 216 Malcolm X Blvd in Manhattan to dispute her mother's obituary. § 87(2)(b) was accompanied by her grandchildren; § 87(2)(b) -old § 87(2)(b) § 87(2)(b) -old § 87(2)(b) and 8-year-old § 87(2)(b) and entered into an argument with the funeral home owner, § 87(2)(b) who called the police on § 87(2)(b) § 87(2)(b) also called her mother, § 87(2)(b) to the location and Officer Nicole Roark and Detective Kendrick Victoria, both of the 28th Precinct, responded to § 87(2)(b) 911 call. The officers called for an ambulance for § 87(2)(b) and notified their supervisor, supervisor Sergeant Melike Turk, who arrived at the location with Police Officer Katlyn Kang, both from the 28th Precinct. Sgt. Turk ordered § 87(2)(b)'s removal to § 87(2)(b) (Allegation A: Abuse of Authority, § 87(2)(g)). While outside of the ambulance, PO Roark allegedly reached into § 87(2)(b)'s pockets before placing her inside it (Allegation B: Abuse of Authority, § 87(2)(g)).

No arrests or summonses resulted from this incident.

§ 87(4-b) § 87(2)(g)

§ 87(2)(b)

The investigation received body-worn camera (BWC) video footage from PO Kang, PO Roark, Det. Victoria, and Sgt. Turk (BR 01). The relevant aspects of footage are discussed in further detail below.

Findings and Recommendations

Allegation (A) Abuse of Authority: Sergeant Melike Turk forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) testified (BR 05) that at the time of the incident, she refused to leave Owen's Funeral Home until they fixed her mother's obituary. When PO Roark and Det. Victoria arrived at the funeral home, Det. Victoria asked § 87(2)(b) to calm down and said that they needed her side of the story. § 87(2)(b) asked the officers if their mothers were dead and continued to rant. § 87(2)(b) told the officers that she was emotionally distressed, and in response, § 87(2)(b) told the officers that § 87(2)(b) had not taken her medication. § 87(2)(b) explained she took medication for seizures, blood pressure, and digestion. EMTs then arrived at the location, and § 87(2)(b) told them that medical attention was not needed, that she was not going to hurt herself, and that she was only livid with § 87(2)(b) for how he treated her. § 87(2)(b) arrived at the location after her daughter, § 87(2)(b) called her, and Det. Victoria tried to speak to § 87(2)(b) but § 87(2)(b) told him good luck with dealing with the situation. Once Sgt. Turk and PO Kang arrived at the location, § 87(2)(b) asked the officers again if their mothers were dead. PO Kang told § 87(2)(b) that her father had died and patted her shoulder. PO Kang and Sgt. Turk then left, and PO Roark and Det. Victoria proceeded to handcuff § 87(2)(b) and escort her to the ambulance.

§ 87(2)(b) (BR 12) was reached via telephone but did not wish to participate in the investigation and did not provide parental consent for the CCRB to speak with § 87(2)(b) § 87(2)(b) and § 87(2)(b) § 87(2)(b) as well did not wish to be part of the investigation.

Sgt. Turk testified (BR 07) that when she and PO Kang arrived at the location, Det. Victoria explained to them why § 87(2)(b) was upset, that § 87(2)(b) could not be reasoned with, and that EMS was inside. When Sgt. Turk first saw § 87(2)(b) she did not see § 87(2)(b) do anything that would make the officers believe § 87(2)(b) was distressed. However, Sgt. Turk believed § 87(2)(b) was an emotionally distressed person (EDP) because § 87(2)(b) continuously shouted, "Is your mother dead?" The EMTs told Sgt. Turk that if § 87(2)(b) was willing to leave then § 87(2)(b) was allowed to go. Sgt. Turk stated she did not know if § 87(2)(b) could harm herself or someone else and did not believe there were any other options other than arresting § 87(2)(b).

§ 87(2)(b) for trespassing or removing § 87(2)(b) to the hospital. When § 87(2)(b) continued to refuse to speak to Sgt. Turk, Sgt. Turk instructed Det. Victoria and PO Roark to put § 87(2)(b) in handcuffs and walk her to the ambulance.

Det. Victoria testified (**BR 06**) that while he and PO Roark were at the funeral home, § 87(2)(b) continuously yelled at Det. Victoria and PO Roark, and as a result, Det. Victoria and PO Roark called for their supervisor, Sgt. Turk. Det. Victoria stated that he could have arrested § 87(2)(b) for trespassing as § 87(2)(b) refused to leave the funeral home, but he and PO Roark called for EMS because Det. Victoria believed § 87(2)(b) was an EDP. Det. Victoria believed § 87(2)(b) was an EDP due to her not being able to hold a conversation, going through a traumatic experience from her mother's passing, and § 87(2)(b) herself stated she was having emotional problems. § 87(2)(b) also continuously yelled and at one point asked Det. Victoria if his mother was dead. Det. Victoria stated that based on his briefing with Sgt. Turk, Sgt. Turk made the decision to remove § 87(2)(b) to the hospital before speaking to § 87(2)(b).

PO Roark and PO Kang were not interviewed due to the testimony of Sgt. Turk and Det. Victoria, along with BWC footage which depicted Sgt. Turk's decision to remove § 87(2)(b) to the hospital.

BWC from Sgt. Turk, contained in IA#48 (**BR 08**), starting at the 02:16 mark, shows Det. Victoria tell Sgt. Turk outside of the funeral home, that § 87(2)(b) said she was emotionally distressed, and that EMS is waiting for them inside. In response Sgt. Turk states, "So she's got to go." Starting at the 03:50 mark, Sgt. Turk, who is now in the funeral home, asks the male EMT if § 87(2)(b) is a "must-go," to which the EMT states that if § 87(2)(b) is willing to leave then she can leave. From 04:46 to 05:04, § 87(2)(b) is shown yelling "Is your mother dead" multiple times after Sgt. Turk tries to talk to § 87(2)(b). At 05:09, Sgt. Turk tells § 87(2)(b) "If she doesn't leave, she going to get arrested" in reference to § 87(2)(b) who sits on the couch, in the waiting area of the funeral home surrounded by PO Kang and EMTs. Sgt. Turk then tells PO Roark and Det. Victoria to do what they must do and tells § 87(2)(b) that she is not being arrested, she is being taken to the hospital.

BWC from Det. Victoria and PO Roark (**BR 10, 15**) is consistent with Det. Victoria's testimony as they both show § 87(2)(b) refusing to leave the funeral home, as she shouts about her mother being dead and her mother's obituary.

NYPD Patrol Guide 221-13 states that an emotionally disturbed person (EDP) is "a person that appears to be mentally ill or temporarily deranged and is conducting himself in a manner which a police officer reasonably believes is likely to result in serious injury to himself or others," and officers are instructed to remove an EDP to the hospital (**BR 09**).

§ 87(2)(g)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

Allegation (B) Abuse of Authority: Police Officer Nicole Roark searched § 87(2)(b)

§ 87(2)(b) testified (**BR 05**) that when she was taken to the ambulance, PO Roark reached into the pockets of her jacket, grabbed her credit card and keys, and placed them back after looking at them.

Both Det. Victoria and Sgt. Turk testified (**BR 06-07**) that they did not see PO Roark enter § 87(2)(b)'s pockets.

BWC from PO Roark, contained in IA#47 (**BR 10**), starting at the 33:18 mark, shows § 87(2)(b)'s jacket slipping, and PO Roark pulls § 87(2)(b)'s jacket up to be situated on her shoulder properly. In response, § 87(2)(b) tells PO Roark to not touch her coat. § 87(2)(b) then enters the ambulance. At no point did BWC, which captures the entire ambulance ride to the hospital, show PO Roark enter § 87(2)(b)'s pockets and grab her credit card and keys.

§ 87(2)(g)

§ 87(4-b) § 87(2)(g)

§ 87(4-b) § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b)
- Sgt. Turk has been a member of service for eight years and has been a subject in three complaints and six allegations, none of which were substantiated. § 87(2)(g)
- PO Roark has been a member of service for four years and has been a subject in two complaints and five allegations, none of which were substantiated. § 87(2)(g)
- Det. Victoria has been a member of service for 15 years and has been a subject in three complaints and three allegations, none of which were substantiated. § 87(2)(g)

- This complaint was not suitable for mediation.
- As of May 17, 2022, the New York City Office of the Comptroller has no record of a Notice of Claim being filed in regards to this incident (**BR 04**).

- _____

Reviewer: _____

Signature	Print Title & Name	Date
-----------	--------------------	------